

Amendment No. 1 to SB0403

Bailey
Signature of Sponsor

AMEND Senate Bill No. 403*

House Bill No. 435

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 68-1-109, is amended by adding the following as a new subsection:

(d)

(1) The department of health, in collaboration with the division of TennCare and the health facilities commission, shall submit an annual report to the clerk of the senate and the clerk of the house of representatives no later than August 1, 2025, and by each August 1 thereafter, related to uncompensated care in this state.

(2) The report required by subdivision (d)(1) must include, but is not limited to, the following for the most recent calendar year for which complete data is available:

(A) The amount of public funds distributed by departments or agencies of this state which were received by facilities that accept compensation for losses due to providing uncompensated care. This amount includes funds received by a facility from the virtual disproportionate share hospital (DSH) fund, uncompensated care payments for charity patients, and other state funds that distribute compensation for uncompensated care; and

(B) The total cost of healthcare services classified as uncompensated care that were provided by each facility that accepts

public funds for losses due to providing uncompensated care, for which no payment or partial payment was received from the patient or on behalf of the patient.

(3) The commissioner of health, in collaboration with the director of TennCare and the executive director of the health facilities commission, or their designees, shall present the findings of the report required by this subsection (d) to the health and welfare committee of the senate and the committee of the house of representatives having jurisdiction over health-related matters no later than March 30, 2026, and by March 15 of each subsequent year.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.